

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Kathryn Duffy	Team: Team # 1	CCRB Case #: 201104137	☒ Force ☒ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Wednesday, 03/30/2011 11:49 PM, Thursday, 03/31/2011 12:00 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 9/30/2012	Precinct: 41
Date/Time CV Reported Thu, 03/31/2011 6:24 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Thu, 03/31/2011 6:24 PM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Scott Berger	10210	948659	PBBX
2. POF Veronica Guachichullca	02343	949066	PBBX
3. POM Reggie Tapia	21055	924539	041 PCT
4. SGT John Kountouris	01826	936886	041 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT John Kountouris	Force: Sgt. John Kountouris used physical force against § 87(2)(b)	A . Exonerated
B . POM Scott Berger	Force: PO Scott Berger used physical force against § 87(2)(b)	B . Exonerated
C . POF Veronica Guachichullca	Force: PO Veronica Guachichullca used pepper spray against § 87(2)(b)	C . Unfounded
D . POM Reggie Tapia	Discourtesy: PO Reggie Tapia spoke rudely to § 87(2)(b)	D . Unsubstantiated

Case Summary

The following complaint was made by Sgt. John Kountouris from the 41st Precinct to IAB on March 31, 2011. A duplicate complaint was made by § 87(2)(b) on the agency website on March 31, 2011. The case was reassigned to the undersigned investigator on May 31, 2011, when it was discovered that the allegations involved fractures as a result of physical force.

At approximately 11:55 pm on March 30, 2011, outside § 87(2)(b) in the Bronx, § 87(2)(b) and his girlfriend, § 87(2)(b) interacted with officers from the 41st Precinct and Patrol Boro Bronx (PBBX). Their interaction resulted in the following allegations:

- **Allegation A – Force:** Sgt. John Kountouris used physical force against § 87(2)(b)
- **Allegation B – Force:** PO Scott Berger used physical force against § 87(2)(b)
§ 87(2)(g) It is therefore recommended that **Allegations A and B be exonerated.**
- **Allegation C – Force:** PO Veronica Guachichullca used physical force against § 87(2)(b)
§ 87(2)(g) It is therefore recommended that **Allegation C be unfounded.**
- **Allegation D – Discourtesy:** PO Reginald Tapia spoke rudely to § 87(2)(b)
§ 87(2)(g) It is therefore recommended that **Allegation D be unsubstantiated.**

Results of Investigation

Civilian Statements

Complainant / Victim: § 87(2)(b)

- § 87(2)(b) Hispanic male, § 87(2)(b), brown hair, brown eyes, unemployed on the incident date.

IAB Testimony, CCRB Testimony, Telephone statements

§ 87(2)(b) provided in-person statements to IAB on March 31, 2011, and to the CCRB on April 21, 2011. He made additional statements to the CCRB over the telephone on April 6, 2011, and June 2, 2011. § 87(2)(g)
§ 87(2)(b). At approximately 12:15 a.m. on March 31, 2011, § 87(2)(b) went to a deli located at § 87(2)(b) and § 87(2)(b) in the Bronx, one block west of his girlfriend, § 87(2)(b)'s apartment building at § 87(2)(b) to purchase a can of beer at a corner store. § 87(2)(b) bought a 24-ounce can of Budweiser beer (which he reported at one time as his sixth 24 ounce beer of the evening, and at another time as his third beer) and carried it unopened inside a black plastic bag. § 87(2)(b) reported feeling “kind of tipsy” from the beer but denied consuming any other alcohol or narcotics; in a telephone conversation on April 6, 2011, he said he was also under the influence of prescription medications.

Upon returning from the deli, § 87(2)(b) saw § 87(2)(b) looking for him outside § 87(2)(b) and told her that he was going to smoke a cigarette before coming back inside. He walked to the side of the building onto a wheelchair-accessible ramp, and lit his cigarette. Prior to walking to the ramp, § 87(2)(b) had noticed a marked police van stopped outside the building. From inside the van one of the officers, identified by the investigation as Sgt. John Kountouris from PBBX (described by § 87(2)(b) as a white male dressed in uniform who stood 5’8” tall, weighed 175 pounds, had light brown or black hair in a “spiky” style, appeared to be in his late 20’s to early 30’s, and might have been a sergeant, although § 87(2)(b) had no

specific reasons for thinking this was his rank), said to § 87(2)(b) “Come over here.” Sgt. Kountouris was seated in the front passenger seat of the van.

§ 87(2)(b) ignored Sgt. Kountouris because he felt that there was no reason for a police officer to stop him; instead, he walked back to the front of the building and rang the doorbell to § 87(2)(b)'s apartment. Through the intercom system § 87(2)(b) told § 87(2)(b) to come outside. Remembering that he had left his can of beer by the side of the building, § 87(2)(b) returned to the wheelchair ramp, picked up the can where he had left it, and attempted to enter the building again. By this time, § 87(2)(b) had come outside. When § 87(2)(b) spoke to IAB investigators, he said that a group of four officers approached him and one said that they had to search him before he went to the lobby of the building. In a telephone conversation on June 2, 2011, § 87(2)(b) said that after he called for § 87(2)(b) through the intercom as the police approached him, she did not exit the building but observed the incident through the windows of the lobby.

When § 87(2)(b) returned to the ramp to pick up his beer, Sgt. Kountouris approached him and said, “I need to search you.” § 87(2)(b) did not reply, because he did not believe that Sgt. Kountouris had probable cause to search him, and because Sgt. Kountouris had not requested his identification. There were two other officers, identified by the investigation as PO Veronica Guachichulca from PBBX (described by § 87(2)(b) as a Hispanic female officer with light-brown skin, who he could not otherwise describe) and PO Scott Berger (described by § 87(2)(b) as a white male who stood 6’1” tall and had a heavy build), who followed Sgt. Kountouris. § 87(2)(b) said in a telephone statement on April 6, 2011, that there were five officers who initially approached him. PO Berger and PO Guachichulca did not ask § 87(2)(b) any questions, and he ignored them.

Sgt. Kountouris reached toward § 87(2)(b)'s jacket with his right hand. § 87(2)(b) smacked it away with his left hand and said, “Whoa—what are you doing?” § 87(2)(b) told IAB investigators on March 31, 2011, that he didn’t want to let Sgt. Kountouris handcuff him and instead asked what he was being arrested for. PO Guachichulca, who was standing to the left of Sgt. Kountouris, pepper-sprayed § 87(2)(b) twice in the face (in his IAB interview, § 87(2)(b) did not specify who used the pepper spray against him). Now blinded, § 87(2)(b) was grabbed and thrown to the ground. He stuck his left arm away from his body in an attempt to avoid being handcuffed, after which an unknown officer stepped on his left hand. Meanwhile, his right arm was placed behind his back, and § 87(2)(b) felt pressure there as officers knelt on him. § 87(2)(b) was kicked or hit two or three times in the ribs while he was on the ground, but he could not see which officer did this or specify where he was kicked or hit. When asked during his IAB interview how long it took the officers to handcuff him, § 87(2)(b) said, “Oh, I gave them a fight. They started macing me and shit like that, so, fifteen minutes.” Throughout this, § 87(2)(b) kept asking the officers why they were arresting him, and told the officers that if they charged him he would “let them” lock him up.

Once he was handcuffed, § 87(2)(b) stayed on the ground for three or four minutes, until one officer instructed the others to take him to the van. § 87(2)(b) was picked up from the ground and carried by the legs and hands towards the police van, which was double-parked on § 87(2)(b). He said during his CCRB interview that he was struck in the face three times while being carried, but he couldn’t clearly remember when this occurred, attribute the strikes to a particular officer, or remember where on his face he was struck. He did not allege being struck in the face during his IAB interview, and during a follow-up call from the CCRB on June 2, 2011, he said that he was punched three times beneath his left eye. During this call, he said that he thought these punches had caused a nasal fracture (although he did not think that any of the blows actually landed on his nose, only under his left eye).

In front of the police van, officers forced § 87(2)(b) to stand up. He did not want to get inside the van because the officers had no reason to lock him up, so he pushed himself back. He was standing between two cars parked beside the double-parked police van and held himself back by grabbing parts of the parked vehicles. He told the IAB investigators that officers tried to put him in a marked police car, not a van. Two police cars had arrived in addition to the van but it was not clear when they arrived. When the officers tried to place § 87(2)(b) in the car, they could not, because he “was not trying to go in the car.” During the IAB interview, § 87(2)(b) said he was kicking and stopping himself from entering the car, but the officers were “making [him] walk” even though he didn’t want to, and carried him to the vehicle. Then the officers tried to place him in the van instead, and were eventually successful. During his CCRB interview § 87(2)(b) said that when he continued to fight being placed in the van, he was thrown to the ground and kicked three or four times in the ribs near the kidneys on both sides of his body, but he was unable to determine which officer or officers kicked him because he was still unable to see due to having been pepper-sprayed. He did not allege this during his IAB interview. He told the CCRB that he lost consciousness inside the police van, but he did not state this during his IAB interview.

At the 41st Precinct stationhouse, § 87(2)(b) said that he “didn’t want to” walk, so the officers carried him into the stationhouse. § 87(2)(b) could not see the officers who escorted him because of the pepper spray. He was placed inside a cell, where he requested that his eyes be rinsed. An officer said, “You’ve got to wait.” § 87(2)(b) told the IAB investigators that an officer kept repeating, “in due time,” in response to his requests. § 87(2)(b) told the CCRB that he hit his forehead against the bars of the cell two or three times to get the officers’ attention, because he felt they were ignoring his requests to have his eyes rinsed. In a telephone conversation on June 2, 2011, he said that this caused no injury because he “only hit [his] head two or three times” and the blows were “light, not hard.” He did not mention hitting his head on the wall to IAB, although the IAB investigators asked him how he sustained his multiple facial lacerations and broken nose when he got to this point in the narrative. § 87(2)(b) told the IAB investigators that he had no idea how he had sustained these injuries and imagined that they were the result of officers hitting him while they tried to place him in the police van.

After hitting his head against the cell walls, § 87(2)(b) sat down on the floor of the cell for about fifteen to twenty minutes. Shortly thereafter, § 87(2)(b) was removed from the cell and brought to § 87(2)(b) by ambulance. He said that a doctor at § 87(2)(b) informed him that he had been kicked so hard in the kidneys that a couple of muscles on his side had been torn and his kidneys were damaged.

Victim: § 87(2)(b)

- § 87(2)(b) Hispanic female, § 87(2)(b), brown hair, brown eyes, not employed on the incident date.

IAB Testimony, CCRB Testimony, Telephone statement

§ 87(2)(b) provided an in-person statement to IAB investigators on March 31, 2011, provided another in-person statement at the CCRB on April 21, 2011, and answered follow-up questions from the CCRB over the telephone on June 2, 2011. § 87(2)(g)

§ 87(2)(b) told IAB investigators that § 87(2)(b) was “drunk” prior to the incident. When she left her apartment building to find § 87(2)(b) at approximately 12:00 am, she saw him standing outside, smoking a cigarette and holding an unopened can of beer (she said that the beer was unopened during her CCRB interview, but told the IAB investigators that § 87(2)(b) had been drinking the beer). § 87(2)(b) told § 87(2)(b) to hurry up, then went back inside to

her apartment, which is on the first floor. A couple of minutes later, § 87(2)(b)'s doorbell rang, and § 87(2)(b) asked her through the intercom to meet him outside.

§ 87(2)(b) left to exit the building, and through the glass windows of the lobby, she saw § 87(2)(b) standing outside the building with four police officers (she told IAB that there were five officers). She saw an officer identified by the investigation as Sgt. Kountouris (described by § 87(2)(b) as a Hispanic male who stood 5'5" tall, had a stocky build, black hair, appeared to be in his 30's and had a sergeant's stripes on his sleeve), talking to § 87(2)(b) and standing directly in front of him. Three more uniformed officers, one of whom was identified as PO Guachichulca (described by § 87(2)(b) as a Hispanic female who stood 5'3" tall with an average build, black hair, and slightly dark skin) PO3 (white female, blonde hair, 5'3" tall, average build, late twenties), and PO Berger (described by § 87(2)(b) as a white male, 5'9" to 5'11" tall, blonde hair, slender build, late twenties) were standing near Sgt. Kountouris and § 87(2)(b). PO Guachichulca stood to the right of Sgt. Kountouris, PO3 was standing approximately two feet behind Sgt. Kountouris and PO Guachichulca, and PO Berger stood at the bottom of the six or seven steps leading to the front door of the building. During her IAB interview, § 87(2)(b) said that she hadn't paid attention to the officers aside from PO Guachichulca and Sgt. Kountouris and could not describe them. She also said during the IAB interview that all of the officers had been standing with their backs to the wall of the building while § 87(2)(b) stood opposite them with his back to the wheelchair ramp, holding his beer in a black plastic bag.

§ 87(2)(b) saw Sgt. Kountouris pulling at § 87(2)(b)'s jacket, and then saw § 87(2)(b) slap at his hand. Then, she left and went back to her apartment to change from slippers to shoes, and returned to the lobby. When she returned, approximately ten seconds later, § 87(2)(b) saw § 87(2)(b) lying on the ground, on his stomach. Sgt. Kountouris and PO Berger were trying to handcuff § 87(2)(b) who was physically resisting by extending his left arm away from his body while his right arm was behind his back. Sgt. Kountouris told him to stop resisting at least twice. § 87(2)(b) continued to resist and was saying that he was going to sue the officers, and that he knew his rights. Sgt. Kountouris had his knee on the left-hand side of § 87(2)(b)'s back, while PO Berger was leaning on the right-hand side of § 87(2)(b)'s back. § 87(2)(b) told the IAB investigators that when she returned from her apartment, officers had § 87(2)(b) face down on the ground directly in front of the front entryway to the building, and had already handcuffed him.

When Sgt. Kountouris succeeded in handcuffing § 87(2)(b) he and PO Berger turned him around, at which point Sgt. Kountouris punched § 87(2)(b) three times with his right hand on the right side of the face, underneath the eye, which resulted in a red mark. § 87(2)(b) subsequently kicked PO Berger in the stomach, who did not respond to § 87(2)(b)'s action and "just stood there." She said she thought the kick was just a reflex. However, she told the IAB investigators that § 87(2)(b) was lying on his stomach, in handcuffs, but was "trying to resist arrest." When the officers moved to roll § 87(2)(b) over, he kicked one of the officers in the stomach, and then Sgt. Kountouris punched him. § 87(2)(b) told IAB that when § 87(2)(b) was punched, it caused "something in his eye," which § 87(2)(b) said she saw before he was taken away. She specified that she was not assuming he had been punched there due to bruises that developed after the fact, but that she saw the sergeant punch § 87(2)(b) in the face on the right side.

Sgt. Kountouris and PO Berger attempted to raise § 87(2)(b) from the ground to get him into the police van, but he refused to cooperate. At that point, § 87(2)(b) asked Sgt. Kountouris with what he was charging § 87(2)(b). Sgt. Kountouris told § 87(2)(b) that he was charging § 87(2)(b) with resisting arrest, and that he was going to issue him a summons for having an open container of alcohol. § 87(2)(b) protested that § 87(2)(b)'s can of beer

was unopened, but Sgt. Kountouris ignored her. PO Guachichullca and PO3 lifted § 87(2)(b) by his legs, while Sgt. Kountouris and PO Berger held onto the left and right sides, respectively, of his leather jacket and walked him over to the police van. § 87(2)(b) indicated that he did not want to enter the van by “ranting and raving.” Sgt. Kountouris kicked § 87(2)(b) on his left side, which caused him to fall to the left and on his knees. When asked, § 87(2)(b) could not account for how a kick from the left side would have caused § 87(2)(b) to fall to the left. § 87(2)(b) did not allege this during her IAB interview, but said that the officers “beat § 87(2)(b) up some more” after dropping him on the ground, where he was hidden from view between cars parked on the curb in front of the building and the double-parked police van.

At this point, § 87(2)(b) was approximately five feet from the double-parked police van. Sgt. Kountouris “banged” § 87(2)(b)’s head three times on the step of the van, after which § 87(2)(b) landed on his left side, and § 87(2)(b) could no longer see him. However, she asserted that she was able to determine what happened because she could see the officers moving. Sgt. Kountouris “stomped on” § 87(2)(b) two or three times (though § 87(2)(b) could not see where on his body he was “stomped”), after which PO Berger said, “Oh, we found crack on you. Now what?”

One of the officers—§ 87(2)(b) did not recall which one—placed a call, after which a patrol car arrived and parked behind the van. An officer identified by the investigation as PO Reginald Tapia from the 41st Precinct (described by § 87(2)(b) as “Puerto Rican,” bald, 5’6” to 5’7” tall, husky build, in his early thirties) stepped out from the passenger seat and helped Sgt. Kountouris place § 87(2)(b) in the back of the patrol car. During her IAB interview § 87(2)(b) acknowledged that this was because § 87(2)(b) had been too uncooperative to be placed in the marked van. While the officers placed § 87(2)(b) in the patrol car, § 87(2)(b) spoke to PO Guachichullca about where § 87(2)(b) was being taken, how she could collect his belongings, and other practical concerns, until PO Tapia told § 87(2)(b) to “shut the fuck up” and go back inside the building. § 87(2)(b) then exchanged words with PO Tapia and told him that he was “abusing his uniform.” She told the IAB investigators that she “cursed him out.”

During her IAB interview, § 87(2)(b) added that at some point after § 87(2)(b) was placed in the patrol car, he kicked the door open and emerged from the car, still handcuffed. She complained that PO Tapia was supposed to have been sitting in the back of the patrol car with § 87(2)(b) in the first place and had wrongly allowed § 87(2)(b) to escape the vehicle. When she last saw § 87(2)(b) as he was being taken away, the only visible injury that she had noticed was a mark below his right eye, which she attributed to the punches from Sgt. Kountouris. He was not bleeding.

NYPD Statements:

Subject Officer: PO SCOTT BERGER

- § 87(2)(b) white male who stands § 87(2)(b) with hazel eyes and brown hair.
- Worked from 5:30 pm until 2:05 am, dressed in uniform, with PO Guachicullca and Sgt. Kountouris in a marked van for IMPACT duty. PO Gavilanes was also in the van.

Memo Book Entry

At 12:01 am on March 31, 2011, PO Berger placed § 87(2)(b) under arrest for § 87(2)(a) 160.50

Criminal Complaint and Supporting Deposition

At the time of the incident, PO Berger saw § 87(2)(b) drinking from an open 12 ounce can of Budweiser in public. When he asked § 87(2)(b) for identification to write him a summons, he refused to provide it. Then, when PO Berger tried to handcuff § 87(2)(b) to bring him to the stationhouse to verify his identity, § 87(2)(b) flailed and kicked PO Berger twice in the right leg. PO Berger observed a crack pipe in one of § 87(2)(b)'s jacket pockets.

Arrest Report § 87(2)(b)

§ 87(2)(a) 160.50

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

CCRB Testimony

PO Berger was interviewed at the CCRB on October 11, 2011. § 87(2)(g)

§ 87(2)(b). PO Berger first noticed § 87(2)(b) while he was standing on the wheelchair accessible ramp at the side of § 87(2)(b) where he drank from an open can of beer and then placed the beer on the ground. The beer was not concealed by a bag or any other packaging. PO Berger was seated in one of the middle rows of the van and observed § 87(2)(b) from inside the van, which was stopped in front of the building.

After observing the violation, PO Berger left the police van to approach § 87(2)(b) to ask him for identification. He was accompanied by Sgt. Kountouris and the other officers who had been in the van. PO Berger made the initial request for § 87(2)(b)'s identification, and § 87(2)(b) said "No." § 87(2)(b) was considered to be under arrest at this point. Next, PO Berger tried to place him under arrest by reaching for one of § 87(2)(b)'s arms (he could not remember which one) but § 87(2)(b) pulled his arm back immediately. PO Berger and some of the other officers grabbed and placed § 87(2)(b) against the wall of the building, then placed his hands behind his back, and he was handcuffed. After being handcuffed, § 87(2)(b) fell to the ground "by himself," and subsequently started to kick at the officers. § 87(2)(b) was lying face-up and one of his kicks made contact with one of PO Berger's legs, though he could not recall which one. A foot post who had been working in the vicinity, PO § 87(2)(b) had approached and become involved in the handcuffing, and § 87(2)(b) kicked PO § 87(2)(b) in the genitals. Neither PO Berger nor PO § 87(2)(b) required medical treatment.

The officers picked § 87(2)(b) up from the ground and attempted to place him in the van by leading him in an upright position, but he resisted by kicking his feet off the sides of the van to launch himself backward and prevent being placed inside. PO Berger denied both that § 87(2)(b) was being carried in a horizontal position and that his face was hit by the steps of the van. Sgt. Kountouris called for assistance, specifically, a marked patrol car equipped with a divider between the front and back passenger areas. When that vehicle arrived § 87(2)(b) was placed inside, but continued to try to kick at the doors and windows of the patrol car. PO Berger could not identify the officers inside the patrol car and did not know them by name. Prior to § 87(2)(b) being removed from the area, a woman who PO Berger believed to be § 87(2)(b)'s girlfriend came outside and asked what was going on, but PO Berger didn't observe any further interaction between this woman and the police officers present. He could not recall if § 87(2)(b) was ever pepper-sprayed. He denied that anyone punched § 87(2)(b) or that anyone kicked him while he was on the ground. Prior to being placed in any police vehicle, a search was performed incident to § 87(2)(b)'s arrest, and a crack pipe was discovered. The search was

performed after § 87(2)(b) had kicked the officers but before they attempted to place him in the van. When § 87(2)(b) entered the police vehicle, he had no visible injuries, and was not bleeding. PO Berger did not hear § 87(2)(b) complain of any injuries.

On the way to the stationhouse, PO Berger rode in the marked van, which was following the marked patrol car that was transporting § 87(2)(b). The patrol car stopped at the side of the road, and the officers inside informed the occupants of the police van that they had to stop because § 87(2)(b) was trying to kick out the windows of the car.

When they arrived at the stationhouse, § 87(2)(b) behaved erratically and was cursing at the officers. He was brought to the cell area, and when he was placed inside one of the cells, he immediately began to bang his head against the bars of the cell door while stating “You did this to me. I’m going to tell them you did this.” PO Berger captured this on mobile phone video that was obtained by the investigation through the IAB liaison. The investigation obtained still photos from the IAB liaison that showed blood marking the floor of the cell, a bench in the cell, and the cell walls. PO Berger affirmed that the blood in the cell was the result of § 87(2)(b) injuring himself against the cell door.

ESU and EMS were called, and § 87(2)(b) was placed in a mesh bag and transported to a hospital. When asked if any officers were injured during the incident, PO Berger said he believed PO Reginald Tapia from the 41st Precinct had sustained an injury. However, he had not mentioned PO Tapia up to this point, and when asked to describe how he became involved in the incident, PO Berger said he thought that PO Tapia may have been one of the officers who transported § 87(2)(b) from the incident location to the stationhouse.

Mobile Phone Video

PO Berger recorded a 45-second mobile phone video of § 87(2)(b) in the cell area. In the video § 87(2)(b) is handcuffed and standing in front of the wire mesh cell door. § 87(2)(b) forcefully crashes the crown of his skull, face, and upper body on both shoulders into the metal door over twenty times on video, and this behavior appears to have been in progress when the video begins. His body hitting against the door is forceful enough that loud thuds are audible after each contact, and he is grunting with exertion after each crash into the door. He does not say anything for the duration of the video and no police officers are pictured. However, a female voice says, twice, “Stop banging your head,” and at the end of the video a male voice (not § 87(2)(b)) says something about getting him to relax.

Subject Officer: SGT. JOHN KOUNTOURIS

- § 87(2)(b) white male who stands § 87(2)(b).
- Worked from 5:15 pm on March 30, 2011 to 2:12 am on March 31, 2011 as IMPACT supervisor with PO Berger and PO Guachichullca. They worked in a marked van and dressed in uniform.

Memo Book Entry

At 12:01 am on March 31, 2011, Sgt. Kountouris verified an arrest for PO Berger.

§ 87(2)(a) 160.50

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

CCRB Testimony

Sgt. Kountouris was interviewed at the CCRB on November 10, 2011, and made the following statement, § 87(2)(g)

§ 87(2)(g). PO Berger verbally informed Sgt. Kountouris that he had observed § 87(2)(b) drinking from an open container, and PO Berger and PO Guachichullca then approached § 87(2)(b) with the intention of obtaining his identification. When § 87(2)(b) refused to identify himself, PO Berger returned to the van to tell Sgt. Kountouris, and Sgt. Kountouris left the van to accompany PO Berger back to § 87(2)(b).

Sgt. Kountouris decided that § 87(2)(b) was under arrest after he refused to provide his name. He described § 87(2)(b)'s demeanor as agitated and noncompliant. Sgt. Kountouris and PO Berger struggled to handcuff § 87(2)(b) against resistance that included § 87(2)(b) stepping back, and pulling his arms away. § 87(2)(b) was taken to the ground by Sgt. Kountouris and PO Berger but continued to resist such that a call for assistance was made. Some of the responding officers included PO Tapia and PO Lozano, who were working in a marked patrol car. Sgt. Kountouris thought that PO Lozano pepper-sprayed § 87(2)(b) at some point.

Sgt. Kountouris acknowledged striking § 87(2)(b) in the head, and said that he struck § 87(2)(b) while he was on the ground, but was struggling to get back up. Sgt. Kountouris's PBA rep assessed the incident as a "stand up fist fight" and Sgt. Kountouris agreed with that description. He was not sure where on the head (such as on the face or on the skull) he struck § 87(2)(b) and said that he might have struck both areas. He identified himself and PO Berger as the main officers involved in trying to physically secure § 87(2)(b). § 87(2)(b)'s wife was present during the incident, but she did not interfere with the arrest or try to speak to him or any other officers that he knew of.

Sgt. Kountouris and PO Berger attempted to place § 87(2)(b) into the marked van, but he threw himself forward and ended up trying to crawl out of the van while still handcuffed. § 87(2)(b) was noncompliant enough that Sgt. Kountouris decided that he should not be placed in the van, but rather into a marked patrol car equipped with a divider between the front and back sections. § 87(2)(b) was placed into a marked patrol car, from which he attempted to climb out the windows of the vehicle while it was in transit to the stationhouse. Sgt. Kountouris could not recall seeing any visible injuries on § 87(2)(b) at the scene of the incident. He did not recall seeing any officers kick § 87(2)(b). He did not hear any officers use profanity. He did not recall any officers being injured during the incident.

Sgt. Kountouris was present in the cell area when § 87(2)(b) began to bang his forehead into the bars of the cell door while shouting, "I'm going to say you guys did this." Sgt. Kountouris left the cell area after less than 30 seconds to call an ambulance for § 87(2)(b).

Subject Officer: PO VERONICA GUACHICHULLCA

- § 87(2)(b) Hispanic female, § 87(2)(b), black hair, brown eyes
- Dressed in uniform, worked from 5:30 pm until 2:05 am in a marked van with PO Berger, Sgt. Kountouris, and PO Gavilanes, assigned to IMPACT.

Memo Book Entry

At 11:50 pm on March 30, one male was stopped in front of § 87(2)(b) by PO Berger. At 12:01 am on March 31, PO Berger placed the male under arrest.

CCRB Testimony

PO Guachichullca was interviewed at the CCRB on November 10, 2011. § 87(2)(g)

When PO Berger saw § 87(2)(b) drink from an open container, PO Guachichullca also noticed § 87(2)(b) but hadn't observed the open container. PO Guachichullca provided a slightly more expanded account of the verbal exchange prior to § 87(2)(b)'s arrest, and said that PO Berger explained the reason for the approach to § 87(2)(b). She remembered § 87(2)(b) going from a standing position to the ground while PO Berger and Sgt. Kountouris

were standing between her and § 87(2)(b) but denied any specific knowledge about how that had happened. Once § 87(2)(b) was on the ground, PO Guachichullca assisted PO Berger and Sgt. Kountouris in trying to hold § 87(2)(b)'s arms behind his back so that he could be handcuffed. At some point shortly thereafter additional IMPACT officers including PO § 87(2)(b) arrived and assisted, and PO Guachichullca remembered him being kicked in the genitals by § 87(2)(b).

PO Guachichullca denied that § 87(2)(b) had been pepper-sprayed, said that she had not done so, and that she had not seen another officer do so. She recalled that the officers present were unable to place § 87(2)(b) in the marked patrol van because he was drunk, and too heavy to lift into the van.

While the officers were waiting for a marked patrol car to arrive, § 87(2)(b) came outside and spoke to PO Guachichullca. § 87(2)(b) acknowledged that § 87(2)(b) had been drinking and said that he drinks all the time; she identified the brand of beer that § 87(2)(b) preferred and this was the same as the beer that he had been observed drinking outside the building. § 87(2)(b) asked where the officers were taking § 87(2)(b) and PO Guachichullca answered her questions. During this interaction, PO Guachichullca was focusing on § 87(2)(b) and did not see what, if anything, transpired between the other officers and § 87(2)(b).

PO Guachichullca denied that any officer struck or kicked § 87(2)(b). When the patrol car transporting § 87(2)(b) had to stop and § 87(2)(b) was moved to the patrol van, PO Guachichullca switched places with § 87(2)(b). PO Guachichullca did not have any more contact with § 87(2)(b) once they arrived at the stationhouse, but approximately 45 minutes after he arrived at the stationhouse, PO Guachichullca saw § 87(2)(b) being removed from the stationhouse by EMS. She saw blood on one of his hands at that time but did not see anything on his face, as he was restrained and his face was obscured by his long hair.

Subject Officer: PO REGINALD TAPIA

- § 87(2)(b) Hispanic male officer who stands § 87(2)(b). He is bald and has brown eyes.
- Dressed in uniform and worked from 11:15 pm until 7:50 am on sector E/F/I with PO Lozano in a marked patrol car

Memo Book Entry

At 12:10 am, the IMPACT sergeant called for assistance at § 87(2)(b). At 12:20 am, PO Tapia and PO Lozano transported one male to the 41st Precinct stationhouse. At 12:48 am, PO Tapia resumed patrol.

CCRB Testimony

PO Tapia was interviewed at the CCRB on November 10, 2011 § 87(2)(g)

PO Tapia said that he and his partner responded to a request for a car at the incident location by Sgt. Kountouris, and when they arrived, they saw § 87(2)(b) on the floor with officers trying to handcuff him. The officers were having trouble because § 87(2)(b) was kicking and screaming. PO Tapia could not remember who was engaged with § 87(2)(b) and could only identify them as IMPACT officers who he did not know by name. When asked to describe how the officers subdued and handcuffed § 87(2)(b) he said that he had been coming from about twenty feet away and had not been able to see that, but arrived to see § 87(2)(b) already handcuffed. He observed § 87(2)(b) kick toward officers, and also observed him spit at officers including him. PO Tapia did not see anyone pepper spray § 87(2)(b) but said that it might have happened before he arrived given how § 87(2)(b) was behaving. He did not notice any other civilians present, and he denied interacting with § 87(2)(b)'s wife. He also denied hearing or using any profanity.

§ 87(2)(b) was presented at the 41st Precinct desk in an intoxicated condition. His condition was further noted as “apparently normal,” but that entry was crossed out and replaced with “bleeding from nose.”

Summary of IAB Investigative Findings

§ 87(2)(g)

Status of Civil Proceedings

[illegible]

Sgt. Kountouris, PO Berger, PO Guachichulca, and PO Tapia acknowledged that they interacted with § 87(2)(b) and § 87(2)(b) and fit the physical descriptions provided by them.

Investigative Findings and Recommendations

Allegations Not Pled

§ 87(2)(g)

Allegation A – Force: Sgt. John Kountouris used physical force against § 87(2)(b)

Allegation B – Force: PO Scott Berger used physical force against § 87(2)(b)

§ 87(2)(b) alleged that after he refused to provide his identification to Sgt. Kountouris and PO Berger, the officers began to attempt to place him in handcuffs and he physically resisted. § 87(2)(b) acknowledged that he fought the officers and alleged that they grabbed his arms, punched him in the face, and kicked him on the sides of his body. PO Berger acknowledged using minimal force to secure § 87(2)(b) by grabbing him by the arms, and Sgt. Kountouris acknowledged the same, in addition to striking § 87(2)(b) in the face or another part of the head to keep him on the ground when he was trying to get up to continue fighting officers. PO Berger and Sgt. Kountouris denied kicking § 87(2)(b) as did the other officers who were interviewed and said that they did not see another officer kick § 87(2)(b). § 87(2)(b) acknowledged that § 87(2)(b) kicked at least one officer in the torso but added allegations that officers hit § 87(2)(b)'s face against a police vehicle and then “stomped” on him, although her view of this action was obscured. § 87(2)(b) stated that despite being punched in the face and having his face “slammed” on the steps of a police van, § 87(2)(b) had no visible injuries with the exception of a mark below one eye. § 87(2)(g) and was not bleeding when he left § 87(2)(b) in police custody.

Inside the police stationhouse, § 87(2)(b) inflicted serious physical injuries on himself by hitting his own face and body against a cell door. He acknowledged as much during his CCRB interview (although, notably, the day after the incident he told IAB investigators that he had “no clue” how he sustained his facial injuries, including a broken nose) but minimized this action by saying that he struck himself against the cell door two or three times (while a video shows over twenty times) “lightly.” According to PO Berger and Sgt. Kountouris, § 87(2)(b) called out “I’m going to say you did this to me” while he was slamming himself against the cell door, although this is not captured on the mobile phone video that was taken by PO Berger. § 87(2)(b) told the CCRB that he believed his broken nose was caused by punches to his face from Sgt. Kountouris. § 87(2)(g)

§ 87(2)(b) and said that a doctor at § 87(2)(b) told him that he had been kicked so hard in the kidneys that a couple of muscles on his side had been torn and his kidneys were damaged. § 87(2)(a) PBH §18(6)

§ 87(2)(g)

§ 87(2)(g)

Patrol Guide Procedure 203-11 allows officers of the NYPD to use minimum necessary force to secure physically resistant prisoners. § 87(2)(g)

. It is therefore recommended that allegations A and B be exonerated.

Allegation C – Force: PO Veronica Guachichullca used pepper spray against § 87(2)(b)

§ 87(2)(b) alleged that when the group of officers initially approached him and he refused to provide identification, the female officer, identified by the investigation as PO Guachichullca, pepper-sprayed him. PO Guachichullca denied pepper-spraying § 87(2)(b) and said that no other officer pepper-sprayed him. Other officers interviewed speculated that § 87(2)(b) might have been pepper-sprayed but had no specific recollections, and Sgt. Kountouris thought that PO Lozano pepper-sprayed § 87(2)(b) although PO Lozano's partner, PO Tapia, denied that § 87(2)(b) was pepper-sprayed while they were present, and § 87(2)(b) specifically alleged that a female officer was the subject of his allegation. The Medical Treatment of Prisoner Report, FDNY Pre-Hospital Care Report, and records from § 87(2)(b)'s admittance to § 87(2)(b) all make no mention of the use of pepper spray.

§ 87(2)(g)

. It is therefore recommended that Allegation C be unfounded.

Allegation D – Discourtesy: PO Reginald Tapia spoke rudely to § 87(2)(b)

§ 87(2)(b) alleged that an officer who fit PO Tapia's physical description told her to "shut the fuck up" while she was talking to PO Guachichullca. The same officer was one of several to place § 87(2)(b) in a marked police car and to ride with him to the 41st Precinct stationhouse. PO Tapia denied engaging in such a verbal exchange and denied using profanity toward civilians during the incident, or hearing other officers do so. PO Guachichullca remembered talking to § 87(2)(b) but also had no recollection of an exchange like the one alleged. § 87(2)(g)

it is recommended that Allegation D be unsubstantiated.

Team: ____1____

Investigator: _____ Kathryn Duffy _____ January 9, 2012 _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____

	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date